

Davis Personal Injury - Automobile Accident

Plaintiff Susan Davis brings this personal injury action against defendant James Brown arising from an automobile accident that occurred on Highway 101 on September 15, 2022. The plaintiff alleges the defendant was negligent in operating his vehicle, causing a rear-end collision that resulted in serious injuries to the plaintiff. The plaintiff sustained injuries including whiplash, herniated disc, and traumatic brain injury requiring extensive medical treatment and ongoing therapy. The plaintiff seeks damages for medical expenses, lost wages, pain and suffering, and loss of enjoyment of life. Total claimed damages exceed \$500,000. The defendant admits liability for the accident but disputes the extent and causation of the plaintiff's injuries. The defendant's expert witnesses testified that some of the plaintiff's claimed injuries were pre-existing or unrelated to the accident. The defendant argues the claimed damages are excessive and not supported by the evidence. After trial, the jury found the defendant negligent and awarded the plaintiff \$350,000 in damages, including \$150,000 for medical expenses, \$50,000 for lost wages, and \$150,000 for pain and suffering. The court enters judgment in favor of the plaintiff in the amount of \$350,000 plus pre-judgment interest and costs.